



POLICE DEPARTMENT

June 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208570 (Incident Date: December 10, 2022) regarding Sergeant George Tavares, Tax No. 931301 (DADS No. 2024-30431)

Dear Mr. Darche:

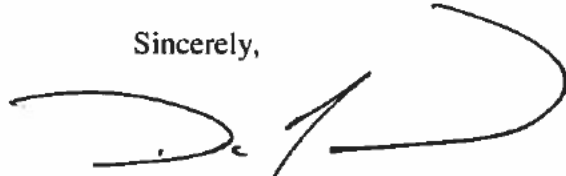
The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208570, pertaining to Sergeant George Tavares. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Tavares would be detrimental to the Police Department's disciplinary process.

The Police Commissioner agrees with the CCRB's findings that the Sergeant's use of profanities during an encounter with the complainant was discourteous and served no legitimate law enforcement purpose. However, given that the statements underlying the allegations were made during one incident, and as part of a single continuous event, the penalty should run concurrently. Thus, Charges and Specifications in this matter would be inappropriate.

Sergeant Tavares has had an exemplary 22-year career with the Police Department, and has received 41 medals. He has no prior substantiated CCRB allegations and no prior formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice

and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline for the discourtesy allegations against Sergeant Tavares.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is stylized with a large, sweeping loop on the right side and a smaller loop on the left side.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

June 5, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208570 (Incident Date: December 10, 2022) regarding Sergeant George Tavares, Tax No. 931301 (DADS No. 2024-30431)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 3, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you agreed with the CCRB’s determination that SGT Tavares’s actions were discourteous and served no legitimate law enforcement purpose. Nevertheless, you determined that you would direct the issuance of a Schedule “A” Command Discipline to SGT Tavares in connection with the substantiated allegations, citing SGT Tavares’s lack of a prior formal disciplinary history, and his lack of prior substantiated CCRB complaints.

Deputy Chief Marino’s letter is incorrect in stating that SGT Tavares has no prior formal disciplinary history. SGT Tavares received a Schedule B-CD and was Warned and Admonished in 2018 for the loss of his memo book. See Summary of Employment History Dated March 28, 2023. The MOU explicitly states that Paragraph 2 is only applicable to cases where there are either parallel or related criminal investigations or where the officer has no prior disciplinary history. Neither of these situations are present in this case

As Deputy Chief Marino’s letter acknowledges, in this matter SGT Tavares was repeatedly discourteous towards the complainant, and these discourtesies were entirely without justification. As Paragraph 2 of the MOU is inapplicable, it is respectfully requested that you permit the CCRB to continue the disciplinary process against SGT Tavares and that the Charges be served upon SGT Tavares.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", written over a horizontal line.

Jonathan Darche

Executive Director

NYC Civilian Complaint Review Board



POLICE DEPARTMENT

June 7, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208570 (Incident Date: December 10, 2022) regarding Sergeant George Tavares, Tax No. 931301 (DADS No. 2024-30431)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 5, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant George Tavares. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Tavares for the reasons expressed in my June 3, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office